

Court No. - 29

Case :- WRIT - C No. - 35151 of 2016

Petitioner :- Madan Mohan Saxena

Respondent :- M.D. D.V.V.N. Ltd. And 3 Others

Counsel for Petitioner :- Mahendra Tripathi

Counsel for Respondent :- Baleshwar Chaturvedi, Ashutosh Srivastava

Hon'ble Tarun Agarwala, J.

Hon'ble Vipin Sinha, J.

The petitioner is the purchaser of the flat. The electricity connection is still in the name of the erstwhile owner (respondent no. 4). The bills are still being raised in the name of respondent no. 4. The husband of respondent no. 4 is the Executive Engineer in the Electricity Department. On account of arrears of electricity, the electricity was disconnected and upon payment of Rs. 1,70,000/-, the electricity connection was restored. However, the fact remains that as on date a fresh bill for Rs. 3,49,828/- has been issued aggrieved against which the petitioner has filed the present writ petition.

Learned counsel for respondent nos. 1, 2 and 3 will file a counter affidavit indicating as to for what amount and for what period, the dues are being sought to be recovered from the petitioner. If the dues relates to the period prior to the purchase of the flat by the petitioner then the respondents will further indicate as to what steps have been taken to recover the amount from the erstwhile owner specifically when the husband of the erstwhile owner is the Executive Engineer in the Electricity Department itself.

Issue notice to respondent no. 4 by registered post acknowledgement due. Steps to be taken within three days.

List for admission on 17.8.20016.

Since petitioner has deposited a sum of Rs. 1,70,000/-, no further action shall be taken by the respondents pursuant to the impugned bill dated 8.3.16 till the next date of listing.

Order Date :- 1.8.2016

Anand

(Vipin Sinha, J.)

(Tarun Agarwala, J.)

Court No. - 29

Case :- WRIT - C No. - 35151 of 2016

Petitioner :- Madan Mohan Saxena

Respondent :- M.D. D.V.V.N. Ltd. And 3 Others

Counsel for Petitioner :- Mahendra Tripathi

Counsel for Respondent :- Baleshwar Chaturvedi, Ashutosh Srivastava

Hon'ble Tarun Agarwala, J.

Hon'ble Vipin Sinha, J.

Three weeks' further time is allowed to the learned counsel for the respondents to file a counter affidavit.

List thereafter.

Interim order is extended till the next date of listing.

Order Date :- 17.8.2016

MAA/-

(Vipin Sinha, J.)

(Tarun Agarwala, J.)

Court No. - 29

Case :- WRIT - C No. - 35151 of 2016

Petitioner :- Madan Mohan Saxena

Respondent :- M.D. D.V.V.N. Ltd. And 3 Others

Counsel for Petitioner :- Mahendra Tripathi

Counsel for Respondent :- Baleshwar Chaturvedi, Ashutosh
Srivastava

Hon'ble Tarun Agarwala, J.

Hon'ble Vipin Sinha, J.

Counter affidavits filed on behalf of respondent nos. 1, 2 and 3 in Court today, are taken on record.

Three weeks' time is allowed to file rejoinder affidavit.

List thereafter.

Interim order, if any, is extended till the next date of listing.

Order Date :- 6.9.2016

Anand

(Vipin Sinha, J.) (Tarun Agarwala, J.)

Court No. - 29

Case :- WRIT - C No. - 35151 of 2016

Petitioner :- Madan Mohan Saxena

Respondent :- M.D. D.V.V.N. Ltd. And 3 Others

Counsel for Petitioner :- Mahendra Tripathi

Counsel for Respondent :- Baleshwar Chaturvedi, Ashutosh
Srivastava

Hon'ble Tarun Agarwala, J.

Hon'ble Vipin Sinha, J.

Two weeks' time is allowed to file rejoinder
affidavit.

List thereafter.

Interim order, if any, is extended till the next
date of listing.

Order Date :- 6.10.2016

Anand

(Vipin Sinha, J.)

(Tarun Agarwala, J.)

Court No. - 29

Case :- WRIT - C No. - 35151 of 2016

Petitioner :- Madan Mohan Saxena

Respondent :- M.D. D.V.V.N. Ltd. And 3 Others

Counsel for Petitioner :- Mahendra Tripathi

Counsel for Respondent :- Baleshwar Chaturvedi, Ashutosh Srivastava

Hon'ble Tarun Agarwala, J.

Hon'ble Pramod Kumar Srivastava, J.

Two weeks' time is allowed to the learned counsel for the petitioner to file rejoinder affidavit.

List thereafter.

Order Date :- 3.11.2016

MAA/-

(Pramod Kumar Srivastava, J.)

(Tarun Agarwala, J.)

Court No. - 29

Case :- WRIT - C No. - 35151 of 2016

Petitioner :- Madan Mohan Saxena

Respondent :- M.D. D.V.V.N. Ltd. And 3 Others

Counsel for Petitioner :- Mahendra Tripathi

Counsel for Respondent :- Baleshwar Chaturvedi, Ashutosh
Srivastava

Hon'ble Tarun Agarwala, J.

Hon'ble Siddhartha Varma, J.

The case is passed over on the illness slip of the
learned counsel for the petitioners.

Order Date :- 21.11.2016

YK

(Siddhartha Varma, J.) (Tarun Agarwala, J.)

Court No. - 29

Case :- WRIT - C No. - 35151 of 2016

Petitioner :- Madan Mohan Saxena

Respondent :- M.D. D.V.V.N. Ltd. And 3 Others

Counsel for Petitioner :- Mahendra Tripathi

Counsel for Respondent :- Baleshwar Chaturvedi, Ashutosh Srivastava

Hon'ble Tarun Agarwala, J.

Hon'ble Siddhartha Varma, J.

The case is passed over on the illness slip of learned counsel for the petitioner.

Order Date :- 13.12.2016

vkj

(Siddhartha Varma J.) (Tarun Agarwala, J.)

Court No. - 35

Case :- WRIT - C No. - 35151 of 2016

Petitioner :- Madan Mohan Saxena

Respondent :- M.D. D.V.V.N. Ltd. And 3 Others

Counsel for Petitioner :- Mahendra Tripathi

Counsel for Respondent :- Baleshwar Chaturvedi, Ashutosh
Srivastava

Hon'ble Bharati Sapru, J.

Hon'ble Siddharth, J.

The case is passed over for the day at the request
of learned counsel for the respondents.

Order Date :- 7.11.2017

Ruchi Agrahari

Court No. - 1

Case :- WRIT - C No. - 35151 of 2016

Petitioner :- Madan Mohan Saxena

Respondent :- M.D. D.V.V.N. Ltd. And 3 Others

Counsel for Petitioner :- Mahendra Tripathi

Counsel for Respondent :- Baleshwar Chaturvedi, Ashutosh Srivastava

Hon'ble Govind Mathur,J.

Hon'ble Ashok Kumar,J.

The case is passed over on the count of illness slip given on behalf of Sri Mahendra Tripathi, learned counsel for the petitioner.

Let this writ petition be listed in the next cause list.

Order Date :- 13.12.2017

SK Srivastava

(Ashok Kumar,J.)

(Govind Mathur,J.)

Court No. - 40

Case :- WRIT - C No. - 35151 of 2016

Petitioner :- Madan Mohan Saxena

Respondent :- M.D. D.V.V.N. Ltd. And 3 Others

Counsel for Petitioner :- Mahendra Tripathi

Counsel for Respondent :- Baleshwar Chaturvedi, Ashutosh Srivastava

Hon'ble Amreshwar Pratap Sahi, J.

Hon'ble Shashi Kant, J.

Cause list has been revised. None appears on behalf of the petitioner.

Heard Sri Ashutosh Srivastava, learned counsel appearing for the respondent no. 3 and Sri A.N. Singh, holding brief of Sri Baleshwar Chaturvedi, learned counsel appearing for the respondent nos. 1 and 2.

This writ petition has been filed contending that the respondent no. 4 who happens to be the wife of the Executive Engineer of the U.P. Power Corporation Limited was owner of the premises and sold it to the petitioner. There were arrears of the electricity dues of respondent no. 4. The same is sought to be realized from the present owner namely the petitioner. The respondent nos. 1, 2 and 3 have filed their counter affidavits. The said arrears were sought to be realized from respondent no. 4 and the demand notice was also issued in her name. However the writ petition has been filed by the present owner and an interim order was passed on 1st April, 2016 directing that till the next date of listing, no further action shall be taken by the respondents pursuant to the impugned bill dated 08.03.2016 as the petitioner has deposited a sum of Rs. 1,70,000/-.

The demand raised under the bill is of Rs. 3,49,828/-.

The petitioner filed a representation before the Chief Engineer, copy whereof as Annexure 3 to the writ petition, contending that this realization is sought to be made after 14 years.

In effect, the petitioner is trying to raise a challenge to the recovery proceedings that have been initiated in the name of respondent no. 4.

In the counter affidavit filed on behalf of the respondent no. 3, the relevant provisions of the U.P. Electricity Supply Code, 2005 have been extracted. In paragraph 13. Clause 4. 3(f)

clearly stipulates that it is the duty of the seller and purchaser to find out the outstanding electricity dues up to the date of sale, and further that both the seller and purchaser will be either/or, jointly and severally liable to pay the outstanding electricity dues/obtain No-dues-certificate. The demand therefore can be realized from the petitioner as well as even though the demand notice issued in favour of the respondent no. 4.

Since the petitioner has come forward by filing the writ petition, we do not find any such error in the process adopted for realization and recovering the electricity dues.

In spite of a counter affidavit having been filed two years back, no rejoinder affidavit has been filed and no one has appeared on behalf of the petitioner to press this writ petition.

The writ petition is dismissed in default and for want of prosecution.

Interim order, if any, stands discharged.

Order Date :- 8.5.2018

Monika